

Law on Cyberinformation Security

Pursuant to the Constitution of the Socialist Republic of Vietnam;

The National Assembly promulgates the Law on Cyberinformation Security.

Chapter I

GENERAL PROVISIONS

Article 1. Scope of regulation

This Law prescribes cyberinformation security activities, and rights and responsibilities of agencies, organizations and individuals in ensuring cyberinformation security; civil cryptography; standards and technical regulations on cyberinformation security; trading in the field of cyberinformation security; development of human resources for cyberinformation security; and state management of cyberinformation security.

Article 2. Subjects of application

This Law applies to Vietnamese agencies, organizations and individuals and foreign organizations and individuals directly involved in or related to cyberinformation security activities in Vietnam.

Article 3. Interpretation of terms

In this Law, the terms below are construed as follows:

1. *Cyberinformation security* means the protection of information and information systems in cyberspace from being illegally accessed, utilized, disclosed, interrupted, altered or sabotaged in order to ensure the integrity, confidentiality and usability of information.

2. *Cyberspace* means an environment where information is provided, transmitted, collected, processed, stored and exchanged over telecommunications networks and computer networks.

3. *Information system* means a combination of hardware, software and databases established to serve the creation, provision, transmission, collection, processing, storage and exchange of information in cyberspace.

4. *National important information system* means an information system which, when being sabotaged, will cause extremely serious harms to national defense and security.

5. *Managing body of an information system* means an agency, organization or individual competent to directly manage an information system.

6. *Infringement upon cyberinformation security* means an act of illegally accessing, utilizing, disclosing, interrupting, altering or sabotaging information or information systems.

7. *Cyberinformation security incident* means an incident that harms information or an information system, affecting the integrity, confidentiality or usability of information.

8. *Cyberinformation security risk* means a subjective factor or an objective factor that is likely to affect the status of cyberinformation security.

9. *Cyberinformation security risk assessment* means the detection, analysis and estimation of levels of harm and threats to information or information systems.

10. *Cyberinformation security risk management* means the introduction of measures to minimize cyberinformation security risks.

11. *Malicious software* (malware) means software that is likely to cause abnormal operation to part or the whole of an information system or that illegally copies, alters or deletes information stored in such information system.

12. *Malware filtering system* means a combination of hardware and software connected to a network to detect, prevent, filter, and collect statistics of, malware.

13. *Electronic address* means an address used to send and receive information in cyberspace, including email address, telephone number, internet address and other similar forms.

14. *Information-related conflict* means two or more domestic and foreign organizations using communication technological or technical measures to harm information or information systems in cyberspace.

15. *Personal information* means information associated with the identification of a specific person.

16. *Owner of personal information* means a person identified based on such information.

17. *Processing of personal information* means the performance of one or some operations of collecting, editing, utilizing, storing, providing, sharing or spreading personal information in cyberspace for commercial purpose.

18. *Civil cryptography* means cryptographic techniques and products used to keep secret or authenticate information not classified as state secret.

19. *Cyberinformation security product* means hardware or software functioning to protect information and information systems.

20. *Cyberinformation security service* means the service of protecting information and information systems.

Article 4. Principles of ensuring cyberinformation security

1. All agencies, organizations and individuals shall ensure cyberinformation security. Cyberinformation security activities must comply with law and ensure national defense and security and state secrets, firmly maintain political stability and social order and safety, and promote socio-economic development.

2. Organizations and individuals may not infringe upon cyberinformation security of others.

3. The response to cyberinformation security incidents must guarantee lawful rights and interests of organizations and individuals and may not infringe upon privacy, personal and family secrets of individuals and private information of organizations.

4. Cyberinformation security activities shall be conducted in a regular, continuous, prompt and effective manner.

Article 5. State policies on cyberinformation security

1. To step up training and development of human resources for cyberinformation security and construction of cyberinformation security technical infrastructure to meet the requirements of political stability, socio-economic development, and assurance of national defense and security and social order and safety.

2. To encourage the research, development and application of technical, technological, export support and market expansion measures for domestically produced cyberinformation security products and services; to facilitate the import of modern products and technologies that cannot be domestically produced or provided yet.

3. To ensure a fair competitive environment for the provision of cyberinformation security products and services; to encourage and create conditions for organizations and individuals to participate in investment, research, development and provision of cyberinformation security products and services.

4. The State shall allocate funds for ensuring cyberinformation security for state agencies and national important information systems.

Article 6. International cooperation on cyberinformation security

1. International cooperation on cyberinformation security must adhere to the following principles:

a/ Respect for national independence, sovereignty and territorial integrity, non-intervention into one another's internal affairs, equality, and mutual benefit;

b/ Compliance with Vietnamese law and treaties to which the Socialist Republic of Vietnam is a contracting party.

2. Contents of international cooperation on cyberinformation security include:

a/ International cooperation in training in, and research and application of cyberinformation security sciences, techniques and technologies;

b/ International cooperation in prevention and control of violations of the law on cyberinformation security; investigation of and response to cyberinformation security incidents, and preclusion of the taking advantage of cyberspace for terrorist purposes;

c/ Other activities of international cooperation on cyberinformation security.

Article 7. Prohibited acts

1. Blocking the transmission of information in cyberspace, or illegally intervening, accessing, harming, deleting, altering, copying or falsifying information in cyberspace.

2. Illegally affecting or obstructing the normal operation of information systems or the users' accessibility to information systems.

3. Illegally attacking, or nullifying cyberinformation security protection measures of, information systems; attacking, seizing the right to control, or sabotaging, information systems.

4. Spreading spams or malware or establishing fake and deceitful information systems.

5. Illegally collecting, utilizing, spreading or trading in personal information of others; abusing weaknesses of information systems to collect or exploit personal information.

6. Hacking cryptographic secrets and lawfully enciphered information of agencies, organizations or individuals; disclosing information on civil cryptographic products or information on clients that lawfully use civil cryptographic products; using or trading in civil cryptographic products of unclear origin.

Article 8. Handling of violations of the law on cyberinformation security

Violators of this Law shall, depending on the nature and severity of their violations, be disciplined, administratively sanctioned or examined for penal liability and, if causing damage, pay compensation in accordance with law.

Chapter II

ASSURANCE OF CYBERINFORMATION SECURITY

Section 1

CYBERINFORMATION PROTECTION

Article 9. Classification of information

1. Information-owning agencies and organizations shall classify information based on its secrecy in order to take appropriate protection measures.

2. Information regarded as state secret shall be classified and protected in accordance with the law on protection of state secrets.

Agencies and organizations that use classified and unclassified information in activities within their fields shall develop regulations and procedures for processing information; determine contents and methods of recording authorized accesses to classified information.

Article 10. Management of sending of information

1. The sending of information in cyberspace must meet the following requirements:

a/ Not forging the information sender source;

b/ Complying with this Law and other relevant laws.

2. Commercial information may not be sent to electronic addresses of recipients when the latter has not yet consented or has refused to receive, unless the recipients are obliged to receive information under law.

3. Telecommunications enterprises, enterprises providing telecommunications application services and enterprises providing information technology services that send information shall:

a/ Comply with the law on storage of information and protection of personal information and private information of organizations and individuals;

b/ Take blocking and handling measures upon receiving notices of organizations or individuals that the sending of information is illegal;

c/ Offer recipients to refuse to receive information;

d/ Provide necessary technical and professional conditions upon request for competent state agencies to manage and ensure cyberinformation security.

Article 11. Prevention, detection, stoppage and handling of malware

1. Agencies, organizations and individuals shall prevent and stop malware as guided or requested by competent state agencies.

2. The managing body of a national important information system shall put into operation technical and professional systems for preventing, detecting, stopping and promptly handling malware.

3. Enterprises providing email services or transmitting and storing information must have malware filtering systems in the course of sending, receiving and storing information via their systems and shall send reports to competent state agencies in accordance with law.

4. Internet service-providing enterprises shall take measures to manage, prevent, detect, and stop the spread of, malware and handle it at the request of competent state agencies.

5. The Ministry of Information and Communications shall assume the prime responsibility for, and coordinate with the Ministry of National Defense, the Ministry of Public Security and related ministries and sectors in, preventing, detecting, stopping and handling malware that affects national defense and security.

Article 12. Security assurance for telecommunications resources

1. Users of telecommunications resources shall:

a/ Apply managerial and technical measures to prevent cyberinformation insecurity arising from their frequencies, number stores, domain names and internet addresses;

b/ Coordinate with, and provide information relating to telecommunications resource security for, competent state agencies upon request.

2. Enterprises providing services on the internet shall manage, and coordinate in preventing cyberinformation insecurity arising from, internet resources and their clients; provide adequate information at the request of competent state agencies; coordinate in connection and routing to ensure secure and stable operation of Vietnam's system of national domain name servers.

3. The Ministry of Information and Communications shall ensure cyberinformation security for Vietnam's system of national domain name servers.

Article 13. Response to cyberinformation security incidents

1. Response to a cyberinformation security incident means activities aiming to handle and remedy an incident that causes cyberinformation insecurity.

2. Response to cyberinformation security incidents must adhere to the following principles:

a/ Being prompt, rapid, accurate, synchronous and effective;

b/ Complying with the law on coordination of response to cyberinformation security incidents;

c/ Ensuring coordination among domestic and foreign agencies, organizations and enterprises.

3. Ministries, ministerial-level agencies, government-attached agencies, provincial-level People's Committees, telecommunications enterprises and managing bodies of national important information systems shall establish or appoint a specialized division to respond to cyberinformation security incidents.

4. The Ministry of Information and Communications shall coordinate response to cyberinformation security incidents nationwide, and prescribe in detail coordination of response to cyberinformation security incidents.

Article 14. Emergency response to ensure national cyberinformation security

1. Emergency response to ensure national cyberinformation security means incident response activities in catastrophic circumstances or at the request of competent state agencies with a view to ensuring national cyberinformation security.

2. Emergency response to ensure national cyberinformation security must adhere to the following principles:

a/ Organizing response according to decentralized competence;

b/ Conducting response on the spot, rapidly, strictly and with close coordination;

c/ Applying effective and feasible technical measures.

3. Emergency response plans to ensure national cyberinformation security include:

a/ Emergency response plan to ensure national cyberinformation security;

b/ Emergency response plan to ensure cyberinformation security for state agencies, political organizations and socio-political organizations;

c/ Emergency response plan to ensure cyberinformation security for localities;

d/ Emergency response plan to ensure cyberinformation security for telecommunications enterprises.

4. Responsibilities to ensure national cyberinformation security are prescribed as follows:

a/ The Prime Minister shall decide on emergency response plans to ensure national cyberinformation security;

b/ The Ministry of Information and Communications shall coordinate emergency response to ensure national cyberinformation security;

c/ Ministries, sectors, People's Committees at all levels, and related agencies and organizations shall, within the ambit of their tasks and powers, coordinate and direct emergency response to ensure national cyberinformation security;

d/ Telecommunications enterprises shall take emergency response measures and coordinate with the Ministry of Information and Communications and related ministries, sectors and People's Committees at all levels in ensuring national cyberinformation security.

Article 15. Responsibilities of agencies, organizations and individuals in ensuring cyberinformation security

1. Agencies, organizations and individuals engaged in cyberinformation security activities shall coordinate with competent state agencies and other organizations and individuals in ensuring cyberinformation security.

2. Agencies, organizations and individuals using services in cyberspace shall promptly notify service-providing enterprises or specialized incident response units of cyberinformation security sabotaging acts or incidents.

Section 2

PROTECTION OF PERSONAL INFORMATION

Article 16. Principles of protecting personal information in cyberspace

1. Individuals shall themselves protect their personal information and comply with the law on provision of personal information when using services in cyberspace.

2. Agencies, organizations and individuals that process personal information shall ensure cyberinformation security for the information they process.

3. Organizations and individuals that process personal information shall develop and publicize their own measures to process and protect personal information.

4. The protection of personal information must comply with this Law and other relevant laws.

5. The processing of personal information for the purpose of ensuring national defense and security and social order and safety or for non-commercial purposes must comply with other relevant laws.

Article 17. Collection and use of personal information

1. Organizations and individuals that process personal information shall:

a/ Collect personal information only after obtaining the consent of its owners regarding the scope and purpose of collection and use of such information;

b/ Use the collected personal information for purposes other than the initial one only after obtaining the consent of its owners;

c/ Refrain from providing, sharing or spreading to a third party personal information they have collected, accessed or controlled, unless they obtain the consent of the owners of such personal information or at the request of competent state agencies.

2. State agencies shall secure and store personal information they have collected.

3. Owners of personal information may request personal information-processing organizations and individuals to provide their personal information collected and stored by the latter.

Article 18. Updating, alteration and cancellation of personal information

1. Owners of personal information may request personal information-processing organizations and individuals to update, alter or cancel their personal information collected or stored by the latter or to stop providing such personal information to a third party.

2. Upon receiving the request of an owner of personal information for update, alteration or cancellation of personal information or for stoppage of the provision of personal information to a third party, a personal information-processing organization or individual shall:

a/ Comply with the request and notify such owner or grant him/her/it the right to access information for the latter to update, alter or delete his/her/its personal information;

b/ Take appropriate measures to protect personal information; and notify such owner if it/he/she fails to comply with the request for technical or other reasons.

3. Personal information-processing organizations and individuals shall delete the stored personal information when they have accomplished their use purposes or the storage time has expired and notify such to the owners of such personal information, unless otherwise prescribed by law.

Article 19. Security assurance for personal information in cyberspace

1. Personal information-processing organizations and individuals shall take appropriate management and technical measures to protect personal information they have collected and stored; and comply with standards and technical regulations on assurance of cyberinformation security.

2. When a cyberinformation security incident occurs or threatens to occur, personal information-processing organizations and individuals shall take remedy and stoppage measures as soon as possible.

Article 20. Responsibilities of state management agencies in protecting personal information in cyberspace

1. To establish online information channels for receiving petitions and reports from the public which are related to security assurance for personal information in cyberspace.

2. To annually inspect and examine personal information-processing organizations and individuals; to conduct extraordinary inspection and examination when necessary.

Section 3

PROTECTION OF INFORMATION SYSTEMS

Article 21. Classification of security grades of information systems

1. Classification of information systems by security grade means the determination of information security grades of information systems in an ascending order from 1 to 5 for taking appropriate management and technical measures to properly protect information systems of each grade.

2. Information systems shall be classified by security grade as follows:

a/ Grade 1 means that when an information system is sabotaged, it will harm lawful rights and interests of organizations or individuals but will not harm public interests, social order and safety or national defense and security;

b/ Grade 2 means that when an information system is sabotaged, it will seriously harm lawful rights and interests of organizations or individuals or will harm public interests but will not harm social order and safety or national defense and security;

c/ Grade 3 means that when an information system is sabotaged, it will seriously harm production, public interests and social order and safety or will harm national defense and security;

d/ Grade 4 means that when an information system is sabotaged, it will cause extremely serious harms to public interests and social order and safety or will seriously harm national defense and security;

dd/ Grade 5 means that when an information system is sabotaged, it will cause extremely serious harms to national defense and security.

3. The Government shall prescribe in detail criteria, competence, order and procedures for determining security grades of information systems and responsibility for ensuring security for information systems of each grade.

Article 22. Tasks of protecting information systems

1. To determine security grades of information systems.
2. To assess and manage security risks to information systems.
3. To urge, supervise and examine the protection of information systems.
4. To take measures to protect information systems.
5. To comply with the reporting regime.
6. To conduct public information for raising awareness about cyberinformation security.

Article 23. Measures to protect information systems

1. To promulgate regulations on cyberinformation security assurance in designing, developing, managing, operating, using, updating or abolishing information systems.
2. To apply management and technical measures according to standards and technical regulations on cyberinformation security for preventing and combating risks and remedying incidents to cyberinformation security.
3. To examine and supervise the observance of regulations and assess the effectiveness of applied management and technical measures.
4. To supervise security of information systems.

Article 24. Security supervision of information systems

1. Security supervision of an information system means activities of choosing a to-be-supervised object, and collecting, and analyzing the status of, information of this object with a view to identifying factors that affect the security of such information system; reporting on and warning acts of infringing upon cyberinformation security or acts threatening to cause cyberinformation security incidents to such information system; analyzing key factors that affect the status of cyberinformation security; and proposing change of technical measures.
2. Subject to security supervision of an information system are firewall, access control, major routes of information, important servers, important equipment and important terminal equipment.
3. Telecommunications enterprises, enterprises providing information technology services and enterprises providing cyberinformation security services shall coordinate with managing bodies of information systems in supervising the security of information systems at the request of competent state agencies.

Article 25. Responsibilities of managing bodies of information systems

1. Managing bodies of information systems shall protect information systems in accordance with Articles 22, 23 and 24 of this Law.

2. State-funded managing bodies of information systems shall perform the responsibilities defined in Clause 1 of this Article and shall:

a/ Make plans to ensure cyberinformation security appraised by competent state agencies when establishing, expanding or upgrading their information systems;

b/ Appoint individuals or units to take charge of cyberinformation security.

Article 26. National important information systems

1. When establishing, expanding or upgrading a national important information system, information security shall be inspected before putting this system into operation and exploitation.

2. The Ministry of Information and Communications shall assume the prime responsibility for, and coordinate with the Ministry of National Defense, the Ministry of Public Security and related ministries and sectors in, making a list of national important information systems for submission to the Prime Minister for promulgation.

Article 27. Responsibility to ensure cyberinformation security for national important information systems

1. The managing body of a national important information system shall:

a/ Comply with the provisions of Clause 2, Article 25 of this Law;

b/ Periodically have cyberinformation security risks assessed by a specialized organization designated by a competent state agency;

c/ Take standby measures for information systems;

d/ Plan and conduct drills in the protection of national important information systems.

2. The Ministry of Information and Communications shall:

a/ Assume the prime responsibility for, and coordinate with managing bodies of national important information systems, the Ministry of Public Security and related ministries and sectors in, guiding, urging, inspecting and examining the protection of cyberinformation security for national important information systems, except those specified in Clauses 3 and 4 of this Article;

b/ Request telecommunications enterprises, enterprises providing information technology services and enterprises providing cyberinformation security services to provide technical advice and assistance and respond to cyberinformation security incidents for national important information systems.

3. The Ministry of Public Security shall guide, urge, inspect and examine the protection of cyberinformation security for national important information systems under its management; and coordinate with the Ministry of Information and Communications, managing bodies of national important information

systems and related ministries, sectors and People's Committees at all levels in protecting other national important information systems at the request of competent state agencies.

4. The Ministry of National Defense shall guide, urge, inspect and examine the protection of cyberinformation security for national important information systems under its management.

5. The Government Cipher Committee shall organize the use of ciphers for protecting information in national important information systems of state agencies, political organizations and socio-political organizations; and coordinate with managing bodies of national important information systems in supervising cyberinformation security in accordance with law.

Section 4

STOPPAGE OF INFORMATION-RELATED CONFLICTS IN CYBERSPACE

Article 28. Responsibilities of organizations and individuals for stopping information-related conflicts in cyberspace

1. Within the ambit of their tasks and powers, organizations and individuals shall:

a/ Stop sabotaging information originating from their information systems; collaborate with one another in identifying sources, and repulsing, and remedying consequences of, cyber-attacks carried out via information systems of domestic and foreign organizations and individuals;

b/ Stop acts of domestic and foreign organizations and individuals that aim to sabotage the integrity of information networks;

c/ Preclude the organization of illegal cyberspace activities of domestic and foreign organizations and individuals that seriously affect national defense and security or social order and safety.

2. The Government shall prescribe in detail the stoppage of information-related conflicts in cyberspace.

Article 29. Stoppage of use of cyberspace for terrorist purposes

1. Measures to stop the use of cyberspace for terrorist purposes include:

a/ Nullifying internet sources used to commit terrorist acts;

b/ Stopping the establishment and expansion of the exchange of information on signals, factors, methods and ways to use the internet for committing terrorist acts, and on objectives and operation of cyberterrorism organizations;

c/ Exchanging experiences and practices in controlling internet sources, and seeking and controlling contents of websites for terrorist purpose.

2. The Government shall prescribe in detail responsibilities and measures to stop the use of cyberspace for terrorist purposes prescribed in Clause 1 of this Article.

Chapter III

CIVIL CRYPTOGRAPHY

Article 30. Civil cryptographic products and services

1. Civil cryptographic products include cryptographic documents and technical and professional equipment used to protect information not classified as state secret.

2. Civil cryptographic services include services of protection of information using civil cryptographic products; inspection and assessment of civil cryptographic products; and counseling on cyberinformation confidentiality and security using civil cryptographic products.

Article 31. Trading in civil cryptographic products and services

1. An enterprise that wishes to trade in civil cryptographic products and services on the list of civil cryptographic products and services shall obtain a license for doing so.

2. An enterprise shall be granted a license for trading in civil cryptographic products and services when fully meeting the following conditions:

a/ Having managerial, administration and technical staff members who meet professional requirements on information confidentiality and security;

b/ Having equipment and physical foundations suitable to the scale of provision of civil cryptographic products and services;

c/ Having a technical plan conformable with standards and technical regulations;

d/ Having a cyberinformation confidentiality and security plan in the course of management and provision of civil cryptographic products and services;

dd/ Having an appropriate business plan.

3. Civil cryptographic products shall be inspected and certified as conformable with regulations before being marketed.

4. To obtain a license for trading in civil cryptographic products and services, an enterprise shall pay a fee in accordance with the law on charges and fees.

5. The Government shall promulgate a list of civil cryptographic products and services and detail this Article.

Article 32. Order and procedures for grant of licenses for trading in civil cryptographic products and services

1. An enterprise applying for a license for trading in civil cryptographic products and services shall submit a dossier of application for a license at the Government Cipher Committee.

2. A dossier of application for a license for trading in civil cryptographic products and services shall be made in two sets, each comprising:

a/ An application for a license for trading in civil cryptographic products and services;

b/ A copy of the enterprise registration certificate, investment registration certificate or another paper of equivalent validity;

c/ Copies of information confidentiality and security diplomas or certificates of managerial, administration and technical staff members;

d/ A technical plan, consisting of papers on technical characteristics and specifications of products; standards or technical regulations of products; standards and quality of services; technical measures and solutions; and product warranty and maintenance plan;

dd/ A cyberinformation confidentiality and security plan in the course of management and provision of civil cryptographic products and services;

e/ A business plan, indicating the scope of provision and recipients of products and services, scale and quantity of products and services, customer service networks, and technical assurance.

3. Within 30 days after receiving a complete dossier, the Government Cipher Committee shall appraise it and grant a license for trading in civil cryptographic products and services; if refusing to grant a license, it shall issue a written notice clearly stating the reason.

4. A license for trading in civil cryptographic products and services shall be valid for 10 years.

Article 33. Modification, supplementation, re-grant, extension, suspension and revocation of licenses for trading in civil cryptographic products and services

1. A license for trading in civil cryptographic products and services shall be modified and supplemented in case the enterprise possessing this license is renamed, replaces its at-law representative, or changes or adds civil cryptographic products and services.

An enterprise shall submit a dossier for license modification and supplementation at the Government Cipher Committee. Such dossier shall be made in two sets, each comprising:

- a/ A written request for license modification and supplementation;
- b/ A copy of the enterprise registration certificate, investment registration certificate or another paper of equivalent validity;
- c/ The granted license for trading in civil cryptographic products and services;
- d/ A technical plan, a cyberinformation confidentiality and security plan, and a business plan for products and services to be added as specified at Points d, dd and e, Clause 2, Article 32 of this Law, in case the enterprise wishes to add civil cryptographic products and services or business lines;

Within 10 working days after receiving a complete dossier, the Government Cipher Committee shall appraise it, modify and supplement the license and re-grant a license to the enterprise; if refusing to re-grant a license, it shall issue a written notice clearly stating the reason.

2. If its license for trading in civil cryptographic products and services is lost or damaged, an enterprise shall send a written request for re-grant, clearly stating the reason, to the Government Cipher Committee. Within 5 working days after receiving the request, the Government Cipher Committee shall consider it and re-grant a license to the enterprise.

3. An enterprise that does not violate the law on trading in civil cryptographic products and services may have its license for trading in civil cryptographic products and services extended once for no more than one year.

A dossier for license extension shall be sent to the Government Cipher Committee at least 60 days before the license expires, and shall be made in two sets, each comprising:

- a/ A written request for license extension;
- b/ The license for trading in civil cryptographic products and services which remains valid;
- c/ A report on the enterprise's operation over the latest 2 years.

Within 20 days after receiving a complete dossier, the Government Cipher Committee shall appraise it, decide to extend the license and re-grant a license to the enterprises; if refusing to re-grant a license, it shall issue a written notice clearly stating the reason.

4. An enterprise shall be suspended from trading in civil cryptographic products and services for up to 6 months in the following cases:

- a/ It provides products and services not stated in the license;
- b/ It fails to satisfy one of the conditions specified in Clause 2, Article 31 of this Law;
- c/ Other cases provided for by law.

5. An enterprise will have its license for trading in civil cryptographic products and services revoked in the following cases:

a/ It fails to provide the services within one year after being granted the license without a plausible reason;

b/ The license expires;

c/ It is unable to remedy the problems mentioned in Clause 4 of this Article after the suspension period expires.

Article 34. Export and import of civil cryptographic products

1. If wishing to export and import civil cryptographic products on the list of civil cryptographic products subject to export and import permit, an enterprise must obtain a permit for export and import of civil cryptographic products from a competent state agency.

2. An enterprise shall be granted a permit for export and import of civil cryptographic products when fully meeting the following conditions:

a/ Possessing a license for trading in civil cryptographic products and services;

b/ Having to-be-imported civil cryptographic products certified and announced as conformable with regulations under Article 39 of this Law;

c/ Ensuring that users and use purposes of civil cryptographic products do not harm national defense and security or social order and safety.

3. A dossier of application for a permit for export and import of civil cryptographic products must comprise:

a/ An application for a permit for export and import of civil cryptographic products;

b/ A copy of the license for trading in civil cryptographic products and services;

c/ A copy of the regulation conformity certificate, for civil cryptographic products to be imported.

4. Within 10 working days after receiving a complete dossier, the Government Cipher Committee shall appraise it and grant a permit for export and import of civil cryptographic products to the enterprise; if refusing to grant a license, it shall issue a written notice clearly stating the reason.

5. The Government shall promulgate a list of civil cryptographic products subject to export and import permit and detail this Article.

Article 35. Responsibilities of enterprises trading in civil cryptographic products and services

1. To manage dossiers and documents on technical solutions and technologies of the products.

2. To establish, store and secure customer information, and names, types, quantities and use purposes of civil cryptographic products and services.

3. To report to the Government Cipher Committee on the trading in and export and import of civil cryptographic products and services and summarize customer information before December 31 every year.

4. To take measures to ensure secure and safe transportation and preservation of civil cryptographic products.

5. To refuse to provide civil cryptographic products and services when detecting their users' violations of the law on use of civil cryptographic products and services or violations of agreed commitments on use of the products and services provided by the enterprises.

6. To suspend or stop providing civil cryptographic products and services in order to ensure national defense and security and social order and safety at the request of competent state agencies.

7. To coordinate with and create conditions for competent state agencies to take professional measures upon request.

Article 36. Responsibilities of users of civil cryptographic products and services

1. To comply with the commitments with enterprises providing civil cryptographic products and services regarding the use management of cryptographic keys, transfer, repair, maintenance, abandonment and destruction of civil cryptography products, and other relevant contents.

2. To provide necessary information relating to cryptographic keys for competent state agencies upon request.

3. To coordinate with and create conditions for competent state agencies to take measures to prevent crimes of stealing information or cryptographic keys and using civil cryptographic products for illegal purposes.

4. Except for diplomatic representative missions, foreign consular offices and representative missions of inter-governmental international organizations in Vietnam, organizations and individuals that use civil cryptographic products provided by those other than enterprises licensed to trade in civil cryptographic products shall declare such to the Government Cipher Committee.

Chapter IV

STANDARDS AND TECHNICAL REGULATIONS ON CYBERINFORMATION SECURITY

Article 37. Standards and technical regulations on cyberinformation security

1. Standards on cyberinformation security include international standards, regional standards, foreign standards, national standards and manufacturer standards on information systems, hardware, software, and systems for management and safe operation of cyberinformation which are announced and recognized for application in Vietnam.

2. Technical regulations on cyberinformation security include national technical regulations and local technical regulations on information systems, hardware, software, and systems for management and safe operation of cyberinformation which are developed, promulgated and applied in Vietnam.

Article 38. Management of standards and technical regulations on cyberinformation security

1. Cyberinformation security regulation conformity certification means a conformity certification organization certifying the conformity of information systems, hardware, software, and systems for management and safe operation of cyberinformation with technical regulations on cyberinformation security.

2. Cyberinformation security regulation conformity announcement means an organization or enterprise announcing the conformity of information systems, hardware, software, and systems for management and safe operation of cyberinformation with technical regulations on cyberinformation security.

3. Cyberinformation security standard conformity certification means a conformity certification organization certifying the conformity of information systems, hardware, software, and systems for management and safe operation of cyberinformation with standards on cyberinformation security.

4. Cyberinformation security standard conformity announcement means an organization or enterprise announcing the conformity of information systems, hardware, software, and systems for management and safe operation of cyberinformation with standards on cyberinformation security.

5. The Ministry of Science and Technology shall assume the prime responsibility for, and coordinate with related agencies in, appraising and announcing national standards on cyberinformation security in accordance with the law on standards and technical regulations.

6. The Ministry of Information and Communications shall:

a/ Draft national standards on cyberinformation security, except national standards mentioned in Clause 7 of this Article;

b/ Promulgate national technical regulations on cyberinformation security, except national technical regulations mentioned in Clause 7 of this Article; and stipulate cyberinformation security regulation conformity assessment;

c/ Manage the quality of cyberinformation security products and services, except civil cryptographic products and services;

d/ Register, designate, and manage the operation of, cyberinformation security conformity certification organizations, except conformity certification organizations for civil cryptographic products and services.

7. The Government Cipher Committee shall assist the Minister of National Defense in drafting national standards on civil cryptographic products and services for submission to competent state agencies for announcement and guidance for implementation; develop and submit to the Minister of National Defense for promulgation national technical regulations on civil cryptographic products and services; designate, and manage the operation of, conformity certification organizations for civil cryptographic products and services; and manage the quality of civil cryptographic products and services.

8. Provincial-level People's Committees shall develop, promulgate, and guide the implementation of, local technical regulations on cyberinformation security; and manage the quality of cyberinformation security products and services in localities.

Article 39. Assessment of cyberinformation security standard or regulation conformity

1. Assessment of cyberinformation security standard or regulation conformity shall be conducted in the following cases:

a/ Regulation conformity certification or announcement shall be conducted and regulation conformity stamps shall be used before an organization or individual markets cyberinformation security products;

b/ To serve the state management of cyberinformation security.

2. Assessment of cyberinformation security standard or regulation conformity serving national important information systems and serving the state management of cyberinformation security shall be conducted by conformity certification organizations designated by the Minister of Information and Communications.

3. Assessment of standard or regulation conformity for civil cryptographic products and services shall be conducted by conformity certification organizations designated by the Minister of National Defense.

4. The recognition of cyberinformation security standard or regulation conformity assessment results between Vietnam and other countries and territories and between conformity certification organizations of Vietnam and other countries and territories must comply with the law on standards and technical regulations.

Chapter V

TRADING IN THE FIELD OF CYBERINFORMATION SECURITY

Section 1

GRANT OF LICENSES FOR TRADING IN CYBERINFORMATION SECURITY PRODUCTS AND SERVICES

Article 40. Trading in the field of cyberinformation security

1. Trading in the field of cyberinformation security is conditional and covers trading in cyberinformation security products and provision of cyberinformation security services.

2. To trade in cyberinformation security products and services specified in Article 41 of this Law, an enterprise must obtain a license for trading in cyberinformation security products and services from a competent state agency. Such a license shall be valid for 10 years.

3. Trading in cyberinformation security products and services must comply with this Law and other relevant laws.

Conditions and the order and procedures for grant of licenses for trading in civil cryptography products and services, export and import of civil cryptography products, responsibilities of enterprises trading in civil cryptography products and services, and use of civil cryptographic products and services must comply with Chapter III of this Law.

Conditions and the order and procedures for grant of licenses for provision of e-signature certification services must comply with the law on e-transactions.

Article 41. Cyberinformation security products and services

1. Cyberinformation security services include:

- a/ Cyberinformation security testing and evaluation services;
- b/ Information confidentiality services without using civil cryptography;
- c/ Civil cryptographic services;
- d/ E-signature certification services;
- dd/ Cyberinformation security counseling services;
- e/ Cyberinformation security supervision services;
- g/ Cyberinformation security incident response services;
- h/ Data recovery services;
- i/ Cyber-attack prevention and combat services;
- k/ Other cyberinformation security services.

2. Cyberinformation security products include:

- a/ Civil cryptographic products;

- b/ Cyberinformation security testing and evaluation products;
- c/ Cyberinformation security supervision products;
- d/ Attack and hacking combat products;
- dd/ Other cyberinformation security products.

3. The Government shall issue detailed lists of cyberinformation security products and services mentioned at Point k, Clause 1, and Point dd, Clause 2, of this Article.

Article 42. Conditions for grant of licenses for trading in cyberinformation security products and services

1. An enterprise shall be granted a license for trading in cyberinformation security products and services, except those mentioned at Points a, b, c and d, Clause 1, and Point a, Clause 2, Article 41 of this Law, when fully meeting the following conditions:

- a/ Such trading complies with the national strategy, master plan or plan on cyberinformation security development;
- b/ It has equipment and physical foundations suitable to the scale of provision of cyberinformation security products and services;
- c/ It has managerial, administration and technical staff members meeting professional requirements on information security;
- d/ It has a suitable business plan.

2. An enterprise shall be granted a license for provision of cyberinformation security testing and evaluation services when fully meeting the following conditions:

- a/ The conditions specified in Clause 1 of this Article;
- b/ It is established and operates lawfully in the Vietnamese territory, except foreign-invested enterprises;
- c/ Its at-law representative and managerial, administration and technical staff members are Vietnamese citizens permanently residing in Vietnam;
- d/ It has a technical plan conformable with relevant standards or technical regulations;
- dd/ It has a customer information confidentiality plan in the course of service provision;
- e/ Its managerial, administration and technical staff members possess information security testing and evaluation diplomas or certificates.

3. An enterprise shall be granted a license for provision of information confidentiality services without using civil cryptography when fully meeting the following conditions:

a/ The conditions specified at Points a, b, c, d and dd, Clause 2 of this Article;

b/ Its managerial, administration and technical staff members possess information confidentiality diplomas or certificates.

4. The Government shall detail this Article.

Article 43. Dossiers of application for licenses for trading in cyberinformation security products and services

1. An enterprise that applies for a license for trading in cyberinformation security products and services shall submit a dossier of application at the Ministry of Information and Communications.

2. A dossier of application for a license for trading in cyberinformation security products and services shall be made in five sets, each comprising:

a/ An application for a license for trading in cyberinformation security products and services, specifying types of cyberinformation security products and services to be traded;

b/ A copy of the enterprise registration certificate, investment registration certificate or another paper of equivalent validity;

c/ A written explanation of the technical equipment system compliant with law;

d/ A business plan specifying the provision scope, users and standards and quality of products and services;

dd/ Copies of information security diplomas or certificates of managerial, administration and technical staff members.

3. In addition to the papers and documents mentioned in Clause 2 of this Article, a dossier of application for a license for provision of information security testing and evaluation services or information confidentiality services without using civil cryptography must comprise:

a/ Judicial record cards of the enterprise's at-law representative and managerial, administration and technical staff members;

b/ A technical plan;

c/ A customer information confidentiality plan in the course of service provision.

Article 44. Appraisal of dossiers and grant of licenses for trading in cyberinformation security products and services

1. Within 40 days after receiving a complete dossier, the Ministry of Information and Communications shall assume the prime responsibility for, and coordinate with related ministries and sectors in, appraising the dossier, and

grant a license for trading in cyberinformation security products and services, except products and services mentioned at Points c and d, Clause 1, and Point a, Clause 2, Article 41 of this Law; if refusing to grant a license, it shall issue a written notice clearly stating the reason.

2. A license for trading in cyberinformation security products and services must have the following principal contents:

a/ Name of the enterprise and its transaction name in Vietnamese and a foreign language (if any); and its head office address in Vietnam;

b/ Name of the enterprise's at-law representative;

c/ Serial number, date of grant and expiry date of the license;

d/ Cyberinformation security products and services licensed for trading.

3. An enterprise that is granted a license for trading in cyberinformation security products and services shall pay a fee in accordance with the law on charges and fees.

Article 45. Modification, supplementation, extension, suspension, revocation and re-grant of licenses for trading in cyberinformation security products and services

1. A license for trading in cyberinformation security products and services shall be modified and supplemented in case the enterprise possessing this license is renamed or replaces its at-law representative, or changes or adds cyberinformation security products and services it provides.

The enterprise shall submit a dossier for license modification and supplementation at the Ministry of Information and Communications. Such dossier shall be made in two sets, each comprising a written request for license modification and supplementation, a detailed description of contents to be modified and supplemented, and other relevant papers.

Within 10 working days after receiving a complete dossier, the Ministry of Information and Communications shall appraise it, modify and supplement the license, and re-grant a license to the enterprise; if refusing to re-grant a license, it shall issue a written notice clearly stating the reason.

2. If its license for trading in cyberinformation security products and services is lost or damaged, an enterprise shall send a written request for re-grant, clearly stating the reason, to the Ministry of Information and Communications. Within 5 working days after receiving the request, the Ministry of Information and Communications shall consider it and re-grant a license to the enterprise.

3. An enterprise that does not violate the law on trading in cyberinformation security products and services may have its license for trading in cyberinformation security products and services extended once for no more

than one year. A dossier for license extension shall be sent to the Ministry of Information and Communications at least 60 days before the license expires, and made in two sets, each comprising:

a/ A written request for license extension;

b/ The license for trading in cyberinformation security products and services which remains valid;

c/ A report on the enterprise's operation over the latest 2 years.

Within 20 days after receiving a complete dossier, the Ministry of Information and Communications shall appraise it, decide on license extension, and re-grant a license to the enterprise; if refusing to re-grant the license, it shall issue a written notice clearly stating the reason.

4. An enterprise shall be suspended from trading in cyberinformation security products and services for up to 6 months in the following cases:

a/ It provides services not stated in the license;

b/ It fails to satisfy one of the conditions mentioned in Article 42 of this Law;

c/ Other cases prescribed by law.

5. An enterprise will have its license for trading in cyberinformation security products and services revoked in the following cases:

a/ It fails to provide services within one year after being granted the license without a plausible reason;

b/ The license expires;

c/ It fails to remedy the problems mentioned in Clause 4 of this Article after the suspension period expires.

Article 46. Responsibilities of enterprises trading in cyberinformation security products and services

1. To manage dossiers and documents on technical solutions and technologies of products.

2. To establish, store and secure customer information.

3. To report to the Ministry of Information and Communications on the trading in and export and import of cyberinformation security products and services before December 31 every year.

4. To refuse to provide cyberinformation security products and services when detecting organizations' or individuals' violations of the law on use of cyberinformation security products and services or violations of agreed commitments on use of products and services provided by the enterprises.

5. To suspend or stop providing cyberinformation security products and services in order to ensure national defense and security and social order and safety at the request of competent state agencies.

6. To coordinate with and create conditions for competent state agencies to take professional measures upon request.

Section 2

MANAGEMENT OF IMPORT OF CYBERINFORMATION SECURITY PRODUCTS

Article 47. Principles of management of import of cyberinformation security products

1. The import of cyberinformation security products shall be managed in accordance with this Law and other relevant laws.

2. The import of cyberinformation security products by agencies, organizations and individuals entitled to diplomatic privileges and immunities must comply with the customs law and the law on privileges and immunities for diplomatic representative missions, foreign consular offices and representative missions of inter-governmental international organizations in Vietnam.

3. In case Vietnam has no relevant technical regulations on cyberinformation security for imported cyberinformation security products, international agreements or treaties to which the Socialist Republic of Vietnam is a contracting party shall apply.

Article 48. Cyberinformation security products subject to import permit

1. To import cyberinformation security products on the Government-prescribed list of cyberinformation security products subject to import permit, an enterprise shall obtain a permit for import of cyberinformation security products from a competent state agency.

2. Before importing cyberinformation security products, organizations and enterprises must have them certified and announced as conformable with regulations under Article 39 of this Law.

3. An organization or enterprise shall be granted a permit for import of cyberinformation security products when fully meeting the following conditions:

a/ Possessing a license for trading in cyberinformation security products;

b/ Having cyberinformation security products certified and announced as conformable with regulations under Article 39 of this Law;

c/ Ensuring that users and use purposes of cyberinformation security products do not harm national defense and security or social order and safety.

4. The Ministry of Information and Communications shall prescribe in detail the order, procedures and dossier for grant of a permit for import of cyberinformation security products.

Chapter VI

DEVELOPMENT OF HUMAN RESOURCES FOR CYBERINFORMATION SECURITY

Article 49. Professional training in cyberinformation security

1. The managing body of an information system shall provide training in cyberinformation security knowledge and skills for managerial and technical staff members.

2. Full-time cyberinformation security officers shall be assigned with, and assisted in performing, tasks relevant to their professional qualifications, and prioritized in attending cyberinformation security refresher training.

3. The State shall encourage organizations and individuals to invest in, and enter into joint venture and association with other organizations in building, higher education institutions and vocational training institutions with a view to training human resources for cyberinformation security.

4. The Ministry of Home Affairs shall assume the prime responsibility for, and coordinate with the Ministry of Information and Communications and related ministries and sectors in, planning and organizing training in cyberinformation security knowledge and operations for cadres, civil servants and public employees.

Article 50. Cyberinformation security diplomas and certificates

1. Higher education institutions and vocational training institutions may grant cyberinformation security diplomas and certificates within the ambit of their tasks and powers.

2. The Ministry of Education and Training shall assume the prime responsibility for, and coordinate with the Ministry of Information and Communications and related ministries and sectors in, recognizing diplomas of higher education in cyberinformation security granted by foreign organizations.

3. The Ministry of Labor, War Invalids and Social Affairs shall assume the prime responsibility for, and coordinate with the Ministry of Information and Communications and related ministries and sectors in, recognizing diplomas and certificates of vocational training in cyberinformation security granted by foreign organizations.

Chapter VII

STATE MANAGEMENT OF CYBERINFORMATION SECURITY

Article 51. Contents of state management of cyberinformation security

1. Formulating strategies, master plans, plans and policies on cyberinformation security; formulating, and directing the implementation of, the national program on cyberinformation security.
2. Promulgating, and organizing the implementation of, legal documents on cyberinformation security; developing and announcing national standards and promulgating technical regulations on cyberinformation security.
3. Performing the state management of civil cryptography.
4. Managing the assessment and announcement of conformity with standards or technical regulations on cyberinformation security.
5. Managing security supervision of information systems.
6. Appraising cyberinformation security-related contents in design dossiers of information systems.
7. Disseminating the law on cyberinformation security.
8. Managing the trading in cyberinformation security products and services.
9. Organizing research and application of cyberinformation security science and technology; developing human resources for cyberinformation security; training full-time cyberinformation security officers.
10. Conducting examination and inspection, settling complaints and denunciations, and handling violations of the law on cyberinformation security.
11. Entering into international cooperation on cyberinformation security.

Article 52. Responsibilities for state management of cyberinformation security

1. The Government shall uniformly perform the state management of cyberinformation security.
2. The Ministry of Information and Communications shall take responsibility before the Government for performing the state management of cyberinformation security, having the following tasks and powers:
 - a/ To promulgate or formulate and submit to competent authorities for promulgation legal documents, strategies, master plans, plans, national standards and national technical regulations on cyberinformation security;
 - b/ To appraise cyberinformation security-related contents in design dossiers of information systems;
 - c/ To manage security supervision of information systems nationwide, except information systems mentioned at Point c, Clause 3, and Point b, Clause 5, of this Article;
 - d/ To manage cyberinformation security assessment;

dd/ To grant licenses for trading in cyberinformation security products and services and permits for import of information security products, except civil cryptographic products and services;

e/ To research and apply cyberinformation security science and technology; to train and develop human resources;

g/ To manage and carry out international cooperation on cyberinformation security;

h/ To conduct examination and inspection, settle complaints and denunciations, and handle violations of the law on cyberinformation security;

i/ To assume the prime responsibility for, and coordinate with related ministries, sectors, provincial-level People's Committees and enterprises in, ensuring cyberinformation security;

i/ To disseminate the law on cyberinformation security;

l/ To annually report on cyberinformation security activities to the Government.

3. The Ministry of National Defense has the following tasks and powers:

a/ To promulgate or formulate and submit to competent authorities for promulgation legal documents, strategies, master plans, plans, national standards and national technical regulations on cyberinformation security in the fields under its management;

b/ To conduct examination and inspection, settle complaints and denunciations, and handle violations in cyberinformation security assurance activities in the fields under its management;

c/ To manage security supervision of its information systems.

4. The Government Cipher Committee shall assist the Minister of National Defense in performing the state management of civil cryptography, having the following tasks:

a/ To formulate and submit to competent authorities for promulgation legal documents on management of civil cryptography;

b/ To assume the prime responsibility for, and coordinate with related ministries and sectors in, formulating and submitting to competent state agencies for promulgation national standards and national technical regulations on civil cryptographic products and services;

c/ To manage the trading in and use of civil cryptography; to manage the quality of civil cryptographic products and services; to manage the assessment and announcement of standard or regulation conformity for civil cryptographic products and services;

d/ To formulate and submit to competent authorities for promulgation a list of civil cryptography products and services and a list of civil cryptographic products subject to export and import permit;

dd/ To grant licenses for trading in civil cryptographic products and services and permits for export and import of civil cryptographic products;

e/ To conduct examination and inspection, settle complaints and denunciations, and handle violations in the trading in and use of civil cryptography;

g/ To enter into international cooperation on civil cryptography.

5. The Ministry of Public Security has the following tasks and powers:

a/ To assume the prime responsibility for, and coordinate with related ministries and sectors in, formulating and submitting to competent authorities for promulgation, or promulgate according to its competence and guide the implementation of legal documents on protection of state secrets, prevention and combat of cybercrime and abuse of cyberspace to infringe upon national security or social order and safety;

b/ To manage security supervision of its information systems;

c/ To organize and direct the crime prevention and combat, and organize investigation of cybercrimes and other violations in the field of cyberinformation security;

d/ To coordinate with the Ministry of Information and Communications and related ministries and sectors in examining and inspecting cyberinformation security and handling violations of the law on cyberinformation security within its competence.

6. The Ministry of Home Affairs shall organize training in cyberinformation security knowledge and skills for cadres, civil servants and public employees.

7. The Ministry of Education and Training shall organize training in and dissemination of cyberinformation security knowledge in higher education institutions.

8. The Ministry of Labor, War Invalids and Social Affairs shall organize training in and dissemination of cyberinformation security knowledge in vocational training institutions.

9. The Ministry of Finance shall provide guidance on and allocate funds for performance of cyberinformation security assurance tasks in accordance with law.

10. Ministries and ministerial-level agencies shall, within the ambit of their tasks and powers, manage cyberinformation security of their own networks and

coordinate with the Ministry of Information and Communications in performing the state management of cyberinformation security.

11. Provincial-level People's Committees shall, within the ambit of their tasks and powers, perform the state management of cyberinformation security in localities.

Chapter VIII

IMPLEMENTATION PROVISIONS

Article 53. Effect

This Law takes effect on July 1, 2016.

Article 54. Detailing provision

The Government and competent state agencies shall detail the articles and clauses in the Law as assigned.

This Law was passed on November 19, 2015, by the XIIIth National Assembly of the Socialist Republic of Vietnam at its 10th session.-

Chairman of the National Assembly
NGUYEN SINH HUNG

LAW ON CYBER SECURITY²

*Pursuant to the Constitution of the Socialist Republic of Vietnam;
The National Assembly promulgates the Law on Cyber Security.*

Chapter I

GENERAL PROVISIONS

Article 1. Scope of regulation

This Law prescribes activities of protecting national security and ensuring social order and safety in cyberspace; and responsibilities of related agencies, organizations and individuals.

Article 2. Interpretation of terms

In this Law, the terms below are construed as follows:

1. *Cyber security* means the assurance that activities in cyberspace do not harm national security, social order and safety, and lawful rights and interests of agencies, organizations and individuals.

2. *Cyber security protection* means the prevention, detection, stopping and handling of acts of infringing upon cyber security.

3. *Cyberspace* means a network connecting information technology infrastructure facilities, including telecommunications networks, the Internet, computer networks, information systems, information processing and control systems and databases, where people socially interact without any space and time limitations.

4. *National cyberspace* means a cyberspace established, managed and controlled by the Government.

5. *National cyberspace infrastructure facilities* means a system of technical and physical facilities serving the creation, transmission and conveyance, collection, processing, storage, and exchange of information in the national cyberspace, including:

² Công Báo Nos 775-776 (14/7/2018)

a/ Transmission systems, including the national transmission system, internationally connected transmission systems, satellite systems, and transmission systems of enterprises providing services in telecommunications networks or the Internet or providing value-added services in cyberspace;

b/ Core service systems, including the national information channeling and routing system, the national domain name system (DNS), the national certification system (PKI/CA) and systems providing Internet connection and access services of enterprises providing services in telecommunications networks or the Internet or providing value-added services in cyberspace;

c/ Information technology services and applications, including online services, online-connected information technology applications serving management and administration work of important agencies, organizations and economic and financial groups, and national databases.

Online services include e-government, e-commerce, websites, online forums, social networks, and blogs;

d/ Information technology infrastructure facilities of smart cities, the Internet of things, mixed reality systems, cloud computing, big data systems, fast data systems, and artificial intelligence systems.

6. *International gateway* means the place where network signals are transmitted and received between Vietnam and other countries and territories.

7. *Cybercrime* means acts of using cyberspace, information technology or electronic devices to commit crimes prescribed in the Penal Code.

8. *Cyber-attack* means acts of using cyberspace, information technology or electronic devices to jeopardize or interrupt the operation of a telecommunications network, the Internet, a computer network, an information system, an information processing and control system, a database or an electronic device.

9. *Cyber terrorism* means the use of cyberspace, information technology or electronic devices to commit terrorism or terrorism financing.

10. *Cyber espionage* means the act of deliberately bypassing warnings, login codes, passwords, or firewalls, using others' administration right, or employing other methods to illegally acquire and collect information or information resources in telecommunications networks, the Internet, computer networks, information systems,

information processing and control systems, databases or electronic devices of agencies, organizations and individuals.

11. *Digital account* means information used to certify, authenticate and grant the right to use applications and services in cyberspace.

12. *Cyber security threat* means the appearance in cyberspace of signs of threat of infringing upon national security or causing serious harms to social order and safety or lawful rights and interests of agencies, organizations and individuals.

13. *Cyber security incident* means an unexpected event occurring in cyberspace which infringes upon national security, social order and safety or lawful rights and interests of agencies, organizations and individuals.

14. *Dangerous cyber security circumstance* means an event occurring in cyberspace which involves acts of seriously infringing upon national security or causing extremely serious harms to social order and safety or lawful rights and interests of agencies, organizations and individuals.

Article 3. The State's policies on cyber security

1. To prioritize the protection of cyber security in national defense, security, socio-economic development, science, technology, and foreign affairs.

2. To build a sound cyberspace without prejudicing national security, social order and safety, and lawful rights and interests of agencies, organizations and individuals.

3. To prioritize resources for building professional cyber security protection forces; to raise capacity of these forces and organizations and individuals engaged in cyber security protection; to prioritize investment in research into and development of science and technology for cyber security protection.

4. To encourage and create conditions for organizations and individuals to participate in cyber security protection and response to cyber security threats; research and develop cyber security protection technologies, products, services and applications; and cooperate with functional agencies in cyber security protection.

5. To increase international cooperation in cyber security.

Article 4. Principles of cyber security protection

1. To abide by the Constitution and laws; to ensure interests of the State and lawful rights and interests of agencies, organizations and individuals.

2. To be placed under the leadership of the Communist Party of Vietnam and the unified management of the State; to mobilize the combined strength of the political system and entire nation; and to bring into play the key role of professional cyber security protection forces.

3. To closely combine cyber security protection and protection of information systems of national security importance with socio-economic development, guarantee of human rights and citizens' rights, and facilitation of operations of agencies, organizations and individuals in cyberspace.

4. To proactively prevent, detect, stop, fight and spoil any activities of using cyberspace to infringe upon national security, social order and safety, or lawful rights and interests of agencies, organizations and individuals; to stay ready to avert cyber security threats.

5. To carry out cyber security protection activities for national cyberspace infrastructure facilities; to apply measures to protect information systems of national security importance.

6. To appraise and certify the satisfaction of cyber security conditions of information systems of national security importance before putting them into operation and use; to regularly conduct cyber security inspection and supervision throughout the operation process, and to promptly respond to and remedy cyber security incidents.

7. To promptly and severely handle all violations of the law on cyber security.

Article 5. Cyber security protection measures

1. Cyber security protection measures include:

a/ Conducting cyber security appraisal;

b/ Assessing cyber security conditions;

c/ Conducting cyber security inspection;

d/ Conducting cyber security supervision;

dd/ Responding to and remedying cyber security incidents;

e/ Taking actions to protect cyber security;

g/ Using cryptography to protect cyber information;

h/ Blocking, or requesting the suspension or termination of, provision of online information; terminating or suspending the establishment, supply and use of telecommunications networks or the Internet, production and use of radio transmitters and receivers in accordance with law;

i/ Requesting the removal of, or logging in to remove, unlawful or false information in cyberspace which infringes upon national security, social order and safety, or lawful rights and interests of agencies, organizations and individuals;

k/ Collecting electronic data relating to activities in cyberspace which infringe upon national security, social order and safety, or lawful rights and interests of agencies, organizations and individuals;

l/ Blocking or restricting operation of information systems; terminating, suspending or requesting the cessation of operation of information systems or revocation of domain names in accordance with law;

m/ Initiating criminal cases, carrying out, investigation, prosecution and trial activities in accordance with the Criminal Procedure Code;

n/ Other measures prescribed by the law on national security and law on handling of administrative violations.

2. The Government shall prescribe the order and procedures for taking cyber security protection measures, except those referred to at Points m and n, Clause 1 of this Article.

Article 6. Protection of the national cyberspace

The State shall apply measures for protecting the national cyberspace, preventing and handling acts in cyberspace which infringe upon national security, social order and safety, or lawful rights and interests of agencies, organizations and individuals.

Article 7. International cooperation in cyber security

1. International cooperation in cyber security shall be implemented on the basis of respect for independence, sovereignty, and territorial integrity, non-intervention into internal affairs, equality, and mutual benefits.

2. International cooperation in cyber security covers:

a/ Research and analysis of cyber security trends;

b/ Creation of mechanisms and policies to boost cooperation between Vietnamese organizations and individuals and foreign organizations and individuals as well as international organizations engaged in cyber security;

c/ Sharing of information and experiences; assistance in training, equipment and technology in cyber security protection;

d/ Prevention of and fighting against cybercrime and infringements upon cyber security; averting cyber security threats;

dd/ Provision of counseling on, training and developing human resources for cyber security;

e/ Organization of international conferences, seminars and forums on cyber security;

g/ Entry into, and implementation of, treaties and international agreements on cyber security;

h/ Implementation of, international cooperation programs and projects on cyber security.

i/ Other activities of international cooperation in cyber security.

3. The Ministry of Public Security shall take responsibility before the Government for assuming the prime responsibility for and coordinating international cooperation in cyber security, except activities of the Ministry of National Defense.

The Ministry of National Defense shall take responsibility before the Government for international cooperation in cyber security under its management.

The Ministry of Foreign Affairs shall coordinate with the Ministry of Public Security and Ministry of National Defense in implementing international cooperation in cyber security.

International cooperation in cyber security involving the responsibilities of more than one ministry or sector shall be decided by the Government.

4. Except for international cooperation activities of the Ministry of National Defense, other ministries, sectors and localities shall obtain written opinions of the Ministry of Public Security before carrying out activities of international cooperation in cyber security.

Article 8. Prohibited acts in cyber security

1. Using cyberspace to commit the following acts:

a/ The acts prescribed in Clause 1, Article 18 of this Law;

b/ Organizing or carrying out activities, colluding with, instigating, buying off, deceiving, enticing or training people to carry out activities against the State of the Socialist Republic of Vietnam;

c/ Distorting history, denying revolutionary achievements, sabotaging the national great solidarity bloc, offending religions or committing gender or racial discrimination;

d/ Providing false information causing public anxiety, harming socio-economic activities or causing difficulties to operation of state

agencies or persons on official duty, or infringing upon lawful rights and interests of other agencies, organizations and individuals;

dd/ Prostitution or other social evils, trafficking in humans; posting obscene, debauched or cruel information; undermining fine traditions and customs of the nation, social ethics and community well-being;

e/ Instigating, inducing or provoking other people to commit crime.

2. Committing cyber-attacks, cyber terrorism, cyber espionage or cybercrime; causing incidents to, attacking, breaking into, taking control of, disrupting, paralyzing or sabotaging information systems of national security importance.

3. Manufacturing, producing or using instruments, equipment or software or obstructing or disrupting the operation of telecommunications networks, the Internet, computer networks, information systems, information processing and control systems, or electronic devices; spreading malware harmful to the operation of telecommunications networks, the Internet, computer networks, information systems, information processing and control systems, or electronic devices; unauthorizedly breaking (hacking) into telecommunications networks, computer networks, information systems, information processing and control systems, databases, or electronic devices of others.

4. Opposing or obstructing operations of cyber security protection forces; illegally attacking and counteracting cyber security protection measures.

5. Taking advantage of or abusing cyber security protection activities to infringe upon national sovereignty, interests or security, social order and safety, or lawful rights and interests of agencies, organizations or individuals or for gaining illicit profits.

6. Other acts violating this Law.

Article 9. Handling of violations of the law on cyber security

Any violators of this Law shall, depending on the nature and severity of their violations, be disciplined, administratively handled or examined for penal liability; if causing damage, they shall pay compensation in accordance with law.

Chapter II

PROTECTION OF CYBER SECURITY OF INFORMATION SYSTEMS OF NATIONAL SECURITY IMPORTANCE

Article 10. Information systems of national security importance

1. An information system of national security importance is an information system which, if encountering incidents, being hacked, taken control of, disrupted, interrupted, paralyzed or sabotaged, will cause serious harm to cyber security.

2. Information systems of national security importance include:

a/ Information systems of the military, public security, diplomacy and cipher sectors;

b/ Information systems storing and processing information classified as state secrets;

c/ Information systems serving the retention and preservation of objects or documents of particularly important value;

d/ Information systems serving the preservation of materials and substances which are extremely dangerous to humans and the environment;

dd/ Information systems serving the preservation, manufacture and management of other particularly important physical foundations related to national security;

e/ Important information systems serving the operation of central agencies and organizations;

g/ National information systems in the energy, finance, banking, telecommunications, transport, natural resources and environment, chemicals, health, culture and mass media sectors;

h/ Automatic control and surveillance systems in important works related to national security or targets of national security importance.

3. The Prime Minister shall promulgate and revise the list of information systems of national security importance.

4. The Government shall prescribe the coordination among the Ministry of Public Security, Ministry of National Defense, Ministry of Information and Communications, Government Cipher Committee and other ministries and related sectors in appraising, assessing, inspecting, supervising, and responding to and remedying incidents to, information systems of national security importance.

Article 11. Cyber security appraisal of information systems of national security importance

1. Cyber security appraisal means the consideration and evaluation of cyber security issues so as to provide grounds for making decision on building or upgrading an information system.

2. Subject to cyber security appraisal of an information system of national security importance are:

a/ Pre-feasibility study report and construction design dossier of the investment project to build the information system before they are approved;

b/ Scheme on upgrading the information system before it is approved.

3. Cyber security appraisal of an information system of national security importance covers:

a/ Compliance of the system's design with cyber security regulations and conditions;

b/ Conformity with plans on cyber security protection, incident response and remediation and cyber security protection personnel.

4. The competence to appraise cyber security of information systems of national security importance is as follows:

a/ The Ministry of Public Security's professional cyber security protection force shall appraise cyber security of information systems of national security importance, except those referred to at Points b and c of this Clause;

b/ The Ministry of National Defense's professional cyber security protection force shall appraise cyber security of military information systems;

c/ The Government Cipher Committee shall appraise cyber security of its cryptographic information systems.

Article 12. Assessment of cyber security conditions of information systems of national security importance

1. Assessment of cyber security conditions means the consideration of the satisfaction of cyber security requirements by information systems before they are put into operation and use.

2. An information system of national security importance must meet conditions regarding:

a/ Cyber security regulations, processes and plans; and system operation and administration staffs;

b/ Cyber security of equipment, devices, hardware and software which are parts of the information system;

c/ Technical measures to supervise and protect cyber security; measures to protect automatic control and supervision systems; the

Internet of things, mixed reality system, cloud computing, big data system, fast data system, and artificial intelligence system;

d/ Measures to ensure physical security, including special isolation, data leak prevention, information collection prevention, and entry and exit control.

3. The competence to assess cyber security conditions of information systems of national security importance is prescribed as follows:

a/ The Ministry of Public Security's professional cyber security protection force shall assess and certify the satisfaction of cyber security conditions for information systems of national security importance, except those referred to at Points b and c of this Clause;

b/ The Ministry of National Defense's professional cyber security protection force shall assess and certify the satisfaction of cyber security conditions for military information systems;

c/ The Government Cipher Committee shall assess and certify the satisfaction of cyber security conditions by its cryptographic information systems.

4. Information systems of national security importance may be put into operation and use only after they are certified as meeting cyber security conditions.

5. The Government shall detail Clause 2 of this Article.

Article 13. Cyber security inspection of information systems of national security importance

1. Cyber security inspection means activities of determining the actual cyber security state of information systems, information system infrastructure facilities or information stored, processed and transmitted in information systems in order to prevent, detect and handle cyber security threats and put forward plans and measures to ensure their normal operation.

2. Cyber security inspection of an information system of national security importance shall be carried out in the following cases:

a/ Electronic devices and cyber information security services are introduced in the information system;

b/ There is a change in the current state of the information system;

c/ On an annual basis;

d/ On an unscheduled basis upon occurrence of cyber security incidents, acts infringing upon cyber security; requirement for state

management of cyber security; expiration of the time limit for remedying security weaknesses and vulnerabilities as recommended by professional cyber security protection forces.

3. Subject to cyber security inspection of an information system of national security importance are:

a/ Hardware, software and digital devices used in the information system;

b/ Cyber security protection regulations and measures;

c/ Information stored, processed and transmitted in the information system;

d/ Cyber security incident response and remediation plan of the information system manager;

dd/ Measures to protect state secrets and prevent disclosure and loss of state secrets via technical channels;

e/ Cyber security protection staffs.

4. Managers of information systems of national security importance shall inspect cyber security of their information systems in the cases prescribed at Points a, b and c, Clause 2 of this Article; notify the inspection result in writing before October every year to the Ministry of Public Security's professional cyber security protection force or to the Ministry of National Defense's professional cyber security protection force, for military information systems.

5. An unscheduled cyber security inspection of an information system of national security importance is prescribed as follows:

a/ Before conducting the inspection, the professional cyber security protection force shall notify in writing the inspection to the information system manager at least 12 hours in advance in case of occurrence of a cyber security incident or an act of infringing upon cyber security; at least 72 hours in advance in case of requirement for state management of cyber security or expiration of the time limit for remedying security weaknesses and vulnerabilities as recommended by a professional cyber security protection force;

b/ Within 30 days after the end of the inspection, the professional cyber security inspection force shall notify the inspection result and its requests to the information system manager, in case of detecting security weaknesses and vulnerabilities; guide or participate in the remediation of incidents if so requested by the information system manager;

c/ The Ministry of Public Security's professional cyber security protection force shall carry out unscheduled cyber security inspections of

information systems of national security importance, except military information systems managed by the Ministry of National Defense, cryptographic information systems of the Government Cipher Committee, and cryptographic products provided by the Government Cipher Committee serving the protection of information classified as state secrets.

The Ministry of National Defense's professional cyber security protection force shall carry out unscheduled cyber security inspections of military information systems.

The Government Cipher Committee shall carry out unscheduled cyber security inspections of its cryptographic information systems and cryptographic products provided by the Government Cipher Committee serving the protection of information classified as state secrets.

d/ Managers of information systems of national security importance shall collaborate with cyber security protection forces performing unscheduled cyber security inspections.

6. Cyber security inspection results shall be kept confidential in accordance with law.

Article 14. Cyber security supervision of information systems of national security importance

1. Cyber security supervision means the collection and analysis of information in order to identify, warn of, remedy and handle cyber security threats and incidents, security weaknesses and vulnerabilities, malware and malicious hardware.

2. Managers of information systems of national security importance shall assume the prime responsibility for, and coordinate with a competent professional cyber security protection force in, regularly supervising cyber security of information systems under their management; create mechanisms for self-warning and receiving warnings about cyber security threats and incidents, security weaknesses and vulnerabilities, malware and malicious hardware, and work out emergency response and remediation plans.

3. Professional cyber security protection forces shall supervise cyber security of information systems of national security importance under their respective management; warn of and coordinate with information system managers in remedying and handling cyber security threats and incidents, security weaknesses and vulnerabilities, malware and malicious hardware in information systems of national security importance.

Article 15. Response to and remediation of cyber security incidents for information systems of national security importance

1. Response to and remediation of cyber security incidents for information systems of national security importance include:

- a/ Detecting and identifying cyber security incidents;
- b/ Protecting scenes and collecting evidence;
- c/ Blocking or limiting the scope of, and minimizing damage caused by, cyber security incidents;
- d/ Identifying targets in need and scope of response;
- dd/ Verifying, analyzing, assessing and classifying cyber security incidents;
- e/ Implementing cyber security incident response and remediation plans;
- g/ Identifying causes and sources of incidents;
- h/ Investigating and handling in accordance with law.

2. Managers of information systems of national security importance shall prepare cyber security incident response and remediation plans for these information systems; implement the plans when cyber security incidents occur and promptly report them to a competent professional cyber security protection force.

3. The coordination of the response to and remediation of cyber security incidents for information systems of national security importance is prescribed as follows:

a/ The Ministry of Public Security's professional cyber security protection force shall assume the prime responsibility for coordinating the response to and remediation of cyber security incidents occurring in information systems of national security importance, except those prescribed at Points b and c of this Clause; participate in the response to and remediation of cyber security incidents occurring in information systems of national security importance when so requested; and notify information system managers when detecting cyber-attacks or cyber security incidents;

b/ The Ministry of National Defense's professional cyber security protection force shall assume the prime responsibility for coordinating the response to and remediation of cyber security incidents occurring in military information systems;

c/ The Government Cipher Committee shall assume the prime responsibility for coordinating the response to and remediation of cyber security incidents occurring in its cryptographic information systems.

4. Agencies, organizations and individuals shall participate in the response to and remediation of cyber security incidents occurring in information systems of national security importance when so requested by the forces in charge of coordinating these activities.

Chapter II

PREVENTION AND HANDLING OF ACTS OF INFRINGING UPON CYBER SECURITY

Article 16. Prevention and handling of information in cyberspace with propaganda contents opposing the State of the Socialist Republic of Vietnam; instigating riots or disrupting security or public order; humiliating or slandering; or infringing upon economic management order

1. Information in cyberspace with propaganda contents against the State of the Socialist Republic of Vietnam includes:

- a/ Information distorting and defaming the people's administration;
- b/ Psychological warfare, information provoking wars of aggression, sowing division and hatred among people of different ethnic groups or religions or people of different nations;

c/ Information offending the nation, desecrating the national flag, emblem or anthem, great personalities, leaders, famous people and national heroes.

2. Information in cyberspace instigating riots or disruption of security or disturbance of public order includes:

- a/ Information calling for, mobilizing, instigating, threatening, sowing division, carrying out armed activities or using violence to oppose the people's administration;
- b/ Information calling for, mobilizing, instigating, threatening, enticing people to gather in masses to cause public disturbances, offend persons on official duty or obstruct activities of agencies and organizations, thus causing insecurity and disorder.

3. Information in cyberspace with disgracing or slandering contents includes:

- a/ Information seriously offending the honor, prestige or dignity of others;

b/ Fabricated or false information harming the honor, prestige or dignity of other people or harming lawful rights and interests of other agencies, organizations or individuals.

4. Information in cyberspace infringing upon economic management order includes:

a/ Fabricated or false information on products, goods, banknotes, bonds, treasury bills, government bonds, checks and other valuable papers;

b/ Fabricated or false information concerning finance, banking, e-commerce, e-payment, monetary trading, capital raising, multi-level marketing, and securities.

5. Fabricated or false information in cyberspace causing public anxiety, damaging socio-economic activities, causing difficulties to activities of state agencies or persons on official duty, or infringing upon lawful rights and interests of other agencies, organizations or individuals.

6. Information system managers shall apply managerial and technical measures to prevent, detect, stop and remove the information prescribed in Clauses 1, 2, 3, 4 and 5 of this Clause in their information systems when so requested by professional cyber security protection forces.

7. Professional cyber security protection forces and competent agencies shall apply the measures prescribed at Points h, i, and l, Article 5 of this Law to handle the information in cyberspace prescribed in Clause 1, 2, 3, 4 or 5 of this Article.

8. Enterprises providing services on telecommunications networks or the Internet or providing value-added services in cyberspace and information system managers shall coordinate with functional agencies in handling the information in cyberspace prescribed in Clauses 1, 2, 3, 4 and 5 of this Article.

9. Organizations and individuals that create, publish and spread in cyberspace the information prescribed in Clause 1, 2, 3, 4 or 5 of this Article shall remove such information when so requested by cyber security protection forces and take responsibility in accordance with law.

Article 17. Prevention and combat of cyber espionage; protection of information classified as state secrets, work secrets, business secrets, personal secrets, family secrets and privacy in cyberspace

1. Cyber espionage and infringement upon state secrets, work secrets, business secrets, personal secrets, family secrets and privacy in cyberspace include:

a/ Acquiring, trading in, collecting and deliberately disclosing information classified as state secrets, work secrets, business secrets, personal secrets, family secrets or privacy, thus affecting the honor, prestige, dignity, or lawful interests of agencies, organizations or individuals;

b/ Deliberately deleting, damaging, mislaying or altering information classified as state secrets, working secrets, business secrets, personal secrets, family secrets or privacy, which is transmitted or stored in cyberspace;

c/ Deliberately modifying, annulling or neutralizing technical measures developed and applied to protect information classified as state secrets, work secrets, business secrets, personal secrets, family secrets or privacy;

d/ Illegally posting in cyberspace information classified as state secrets, work secrets, business secrets, personal secrets, family secrets or privacy;

dd/ Deliberately eavesdropping or illegally audio or video recording conversations;

e/ Other acts of deliberately infringing upon state secrets, work secrets, business secrets, personal secrets, family secrets or privacy.

2. Information system managers shall:

a/ Conduct cyber security inspection in order to detect and remove malicious codes and hardware, remedy security weaknesses and vulnerabilities; detect, prevent and cope with illegal intrusions or other cyber security threats;

b/ Apply managerial and technical measures to prevent, detect and stop acts of cyber espionage and infringement upon state secrets, work secrets, business secrets, personal secrets, family secrets or privacy in information systems and timely remove information relating to these acts;

c/ Cooperate with and comply with requests of professional cyber security protection forces regarding prevention and combat of cyber espionage and protection of information being state secrets, working secrets, business secrets, personal secrets or family secrets or relating to private life in cyberspace.

3. Agencies creating and storing information and documents classified as state secrets shall protect state secrets created and stored in computers and other devices or shared in cyberspace in accordance with the law on protection of state secrets.

4. The Ministry of Public Security has the following responsibilities, except those prescribed in Clauses 5 and 6 of this Article:

a/ To conduct cyber security inspection of information systems of national security importance in order to detect and remove malicious codes and hardware, remedy security weaknesses and vulnerabilities; to detect, prevent and handle illegal intrusions;

b/ To conduct cyber security inspection of information and communication equipment, products and services, and digital and electronic equipment before they are used in information systems of national security importance;

c/ To conduct cyber security supervision of information systems of national security importance in order to detect and handle the illegal collection of information classified as state secrets;

d/ To detect and handle acts of illegally posting, storing and exchanging information and documents classified as state secrets in cyberspace;

dd/ To participate in the research into and production of products serving the storage and transmission of information and contents classified as state secrets, and cryptographic products in cyberspace according to its assigned functions and tasks;

e/ To inspect and examine the protection of state secrets in cyberspace by state agencies and protection of cyber security by managers of information systems of national security importance;

g/ To organize training courses to raise cyber security protection forces' awareness and knowledge about protection of state secrets in cyberspace, prevention and combat of cyber-attacks, and protection of cyber security under Clause 2, Article 30 of this Law.

5. The Ministry of National Defense shall implement the provisions of Points a, b, c, d, dd and e, Clause 4 of this Article regarding military information systems.

6. The Government Cipher Committee shall organize the implementation of the law on encryption to protect information classified as state secrets stored and exchanged in cyberspace.

Article 18. Prevention and combat of acts of using cyberspace, information technology or electronic devices in violation of the law on national security and social order and safety

1. Acts of using cyberspace, information technology or electronic devices in violation of the law on national security or social order and safety include:

a/ Posting or spreading in cyberspace the information prescribed in Clauses 1, 2, 3, 4, and 5, Article 16, or committing the acts prescribed in Clause 1, Article 17, of this Law;

b/ Appropriating property; organizing gambling or gambling via the Internet; committing theft of Internet-based international telecommunications services; infringing upon copyright and intellectual property rights in cyberspace;

c/ Creating fake websites; forging, distributing, stealing, trading in, collecting or exchanging illegally information on others' credit cards and bank accounts; illegally issuing, supplying and using payment instruments;

d/ Promoting, advertising and trading in goods and services banned by law;

dd/ Guiding how to commit illegal acts;

e/ Other acts of using cyberspace, information technology or electronic devices in violation of the law on national security or social order and safety.

2. Professional cyber security protection forces shall take responsibility for preventing and combating acts of using cyberspace, information technology or electronic devices in violation of the law on national security or social order and safety.

Article 19. Prevention and combat of cyber-attacks

1. Cyber-attacks and acts related to cyber-attacks include:

a/ Spreading computer programs harmful to telecommunications networks, the Internet, computer networks, information systems, information processing and control systems, databases or electronic devices;

b/ Obstructing, disrupting, paralyzing, interrupting or delaying the operation of, or illegally blocking the transmission of data by, telecommunications networks, the Internet, computer networks, information systems, information processing and control systems, or electronic devices;

c/ Accessing, damaging or obtaining data stored or transmitted via telecommunications networks, the Internet, computer networks, information systems, information processing and control systems, databases or electronic devices;

d/ Accessing, creating or exploiting security weaknesses or vulnerabilities and system services to obtain information and gain illicit profits;

dd/ Producing, trading in, exchanging or donating instruments, equipment or software having a feature of attacking telecommunications networks, the Internet, computer networks, information systems, information processing and control systems, databases or electronic devices for illegal purposes;

e/ Other acts affecting normal operation of telecommunications networks, the Internet, computer networks, information systems, information processing and control systems, databases or electronic devices.

2. Information system managers shall apply technical measures to prevent and stop the acts prescribed at Points a, b, c, d and e, Clause 1 of this Article against their information systems.

3. Upon occurrence of cyber-attacks infringing or threatening to infringe upon national sovereignty, interests or security or seriously jeopardizing social order or safety, professional cyber security protection forces shall assume the prime responsibility for, and coordinate with information system managers and related organizations and individuals in, applying measures to identify the origins of these cyber-attacks and collect evidence; request enterprises providing services on telecommunications networks or the Internet and enterprises providing value-added services in cyberspace to block and filter information so as to prevent and eliminate cyber-attacks and sufficiently and promptly provide relevant information and documents.

4. The responsibility for preventing and combating cyber-attacks is prescribed as follows:

a/ The Ministry of Public Security shall assume the prime responsibility for, and coordinate with related ministries and sectors in preventing, detecting and handling the acts prescribed in Clause 1 of this Article which infringe or threaten to infringe upon national sovereignty, interests or security or seriously jeopardizing social order or safety nationwide, except the cases prescribed at Points b and c of this Clause;

b/ The Ministry of National Defense shall assume the prime responsibility for, and coordinate with related ministries and sectors in, preventing, detecting and handling the acts prescribed in Clause 1 of this Article for military information systems;

c/ The Government Cipher Committee shall assume the prime responsibility for, and coordinate with related ministries and sectors in,

preventing, detecting and handling the acts prescribed in Clause 1 of this Article for its cryptographic information systems.

Article 20. Prevention and combat of cyber terrorism

1. Competent state agencies shall apply measures prescribed by this Law, Article 29 of the Law on Cyberinformation Security and the anti-terrorism law to combat cyber-terrorism.

2. Information system managers shall regularly review and inspect their information systems so as to eliminate the danger of cyber terrorism.

3. Any signs or acts of cyber terrorism shall be promptly reported to cyber security protection forces. Agencies which receive information and reports on cyber terrorism shall promptly notify them to professional cyber security protection forces.

4. The Ministry of Public Security shall assume the prime responsibility for, and coordinate with related ministries and sectors in, preventing and combating cyber terrorism, applying measures to neutralize sources of cyber terrorism, and deal with cyber terrorism and minimize consequences to information systems, except the cases prescribed in Clauses 5 and 6 of this Article.

5. The Ministry of National Defense shall assume the prime responsibility for, and coordinate with related ministries and sectors in, preventing and combating cyber terrorism and applying measures to deal with cyber terrorism occurring in military information systems.

6. The Government Cipher Committee shall assume the prime responsibility for, and coordinate with related ministries and sectors in, preventing and combating cyber terrorism and applying measures to deal with cyber terrorism occurring in its cryptographic information systems.

Article 21. Prevention and handling of dangerous cyber security circumstances

1. Dangerous cyber security circumstances include:

a/ Provocative information in cyberspace, posing risks of riot, security disruption or terrorism;

b/ Attacks against information systems of national security importance;

c/ Large-scale and intense attacks against multiple information systems;

d/ Cyber-attacks aiming at destroying a work or target of national security importance;

dd/ Cyber-attacks seriously infringing upon national sovereignty, interests or security; seriously disturbing social order or safety or infringing upon lawful rights and interests of agencies, organizations and individuals.

2. The responsibility for preventing dangerous cyber security circumstances is prescribed as follows:

a/ Professional cyber security protection forces shall work with managers of information systems of national security importance in implementing technical and professional solutions to prevent, detect and handle dangerous cyber security circumstances;

b/ Telecommunications, Internet and information technology enterprises, enterprises providing services on telecommunications networks or the Internet, enterprises providing value-added services in cyberspace, and related agencies, organizations and individuals shall coordinate with the Ministry of Public Security's professional cyber security protection force in preventing, detecting and handling dangerous cyber security circumstances.

3. Measures for handling dangerous cyber security circumstances include:

a/ Immediately implementing plans on prevention of and urgent response to cyber security incidents, preventing, eliminating or minimizing damage caused by dangerous cyber security circumstances;

b/ Notifying the circumstances to related agencies, organizations and individuals;

c/ Collecting relevant information; constantly monitoring and supervising dangerous cyber security circumstances;

d/ Analyzing and assessing information, forecasting the probability, scope of influence and extent of damage caused by dangerous cyber security circumstances;

dd/ Suspending the provision of cyber information in specific areas or disconnecting the international gateway;

e/ Arranging forces and means to prevent and eliminate dangerous cyber security circumstances;

g/ Other measures as prescribed in the Law on National Security.

4. The handling of dangerous cyber security circumstances is prescribed as follows:

a/ When detecting a dangerous cyber security circumstance, agencies, organizations and individuals shall promptly notify it to

professional cyber security protection forces and apply the measures prescribed at Points a and b, Clause 3 of this Article;

b/ The Prime Minister shall consider and decide or authorize the Minister of Public Security to consider, decide and handle dangerous cyber security circumstances nationwide or in each locality or for a specific target.

The Prime Minister shall consider and decide or authorize the Minister of National Defense to consider, decide and handle dangerous cyber security circumstances for military information systems and cryptographic information systems of the Government Cipher Committee;

c/ Professional cyber security protection forces shall assume the prime responsibility for, and coordinate with related agencies, organizations and individuals in, applying the measures prescribed in Clause 3 of this Article to handle dangerous cyber security circumstances;

d/ Related agencies, organizations and individuals shall coordinate with professional cyber security protection forces in applying measures for preventing and handling dangerous cyber security circumstances.

Article 22. Fighting to protect cyber security

1. Fighting to protect cyber security means organized activities carried out in cyberspace by professional cyber security protection forces in order to protect national security and ensure social order and safety.

2. Fighting to protect cyber security covers:

a/ Grasping information relating to national security protection;

b/ Preventing and combating attacks against, and protecting information systems of national security importance to ensure their stable operation;

c/ Paralyzing or restricting activities of using cyberspace to infringe upon national security or cause extremely serious harms to social order and safety;

d/ Taking the initiative in attacking and neutralizing targets in cyberspace in order to protect national security and ensure social order and safety.

3. The Ministry of Public Security shall assume the prime responsibility for, and coordinate with related ministries and sectors in, fighting to protect cyber security.

Chapter IV

CYBER SECURITY PROTECTION ACTIVITIES

Article 23. Implementation of cyber security protection activities by state agencies and political organizations at central and local levels

1. Cyber security protection activities include:

a/ Formulating and improving regulations on use of local computer networks and Internet-connected computer networks; plans on assurance of cyber security for information systems; and plans on response to and remediation of cyber security incidents;

b/ Applying and implementing plans, measures and technologies to protect cyber security for information systems under their management and information and documents stored, created and transmitted thereon;

c/ Organizing training in knowledge on cyber security for cadres, civil servants, public employees and workers; building cyber security protection capacity for cyber security protection forces;

d/ Protecting cyber security in the provision of public services in cyberspace; providing information to, exchanging information with and collecting information from agencies, organizations and individuals; sharing information within their agencies and with other agencies, or in other activities according to the Government's regulations;

dd/ Investing in and building appropriate physical infrastructure facilities to ensure implementation of cyber security protection activities for information systems;

e/ Conducting cyber security inspection of information systems; preventing and combating violations of the law on cyber security; responding to and remedying cyber security incidents.

2. Heads of agencies and units shall organize cyber security protection activities under their management.

Article 24. Cyber security inspection of agencies' and organizations' information systems outside the list of information systems of national security importance

1. Cyber security inspection of agencies' and organizations' information systems outside the list of information systems of national security importance shall be conducted in the following cases:

a/ There is an act of violating the law on cyber security, infringing upon national security or seriously jeopardizing social order and safety;

b/ There is a request of an information system manager.

2. Subject to cyber security inspection are:

a/ Hardware systems, software, and digital equipment used in information systems;

b/ Information stored, processed and transmitted in information systems;

c/ Measures for protecting state secrets and preventing and controlling disclosure and loss of state secrets via technical channels.

3. When detecting acts of violating the law on cyber security in their information systems, information system managers shall notify them the Ministry of Public Security's professional cyber security protection force.

4. The Ministry of Public Security's professional cyber security protection force shall conduct cyber security inspection of information systems of agencies and organizations in the cases prescribed in Clause 1 of this Article.

5. Professional cyber security protection forces shall notify information system managers in writing at least 12 hours before conducting cyber security inspection.

Within 30 days after finishing the inspection, professional cyber security protection forces shall notify inspection results and their requests to information system managers if detecting security weaknesses or vulnerabilities; guide or participate in the remediation of incidents if so requested by information system managers.

6. Cyber security inspection results shall be kept confidential in accordance with law.

7. The Government shall prescribe the order and procedures for cyber security inspection under this Article.

Article 25. Protection of cyber security for national network infrastructure facilities and international gateways

1. Protection of cyber security for national network infrastructure facilities and international gateways must ensure close combination between security protection and socio-economic development requirements; the location of international gateways in Vietnam's territory shall be encouraged; and organizations and individuals shall be encouraged to invest in and build national network infrastructure facilities.

2. Managers and users of national network infrastructure facilities and international gateways shall:

a/ Protect cyber security within their management; submit to the management, inspection and examination by competent state agencies and comply with their cyber security protection requests;

b/ Create conditions and apply necessary technical and professional measures for competent state agencies to protect cyber security when so requested by the latter.

Article 26. Assurance of information security in cyberspace

1. Websites, portals or social network pages of agencies, organizations and individuals may not provide, post or transmit the information prescribed in Clauses 1, 2, 3, 4 and 5, Article 16 of this Law and other information infringing upon national security.

2. Domestic and foreign enterprises providing services on the telecommunications networks or the Internet or providing value-added services in cyberspace in Vietnam shall:

a/ Verify information when users register digital accounts; keep user information and accounts confidential; provide user information to the Ministry of Public Security's professional cyber security protection force when receiving the latter's written requests to serve the investigation and handling of violations of the law on cyber security;

b/ Block the sharing of information, remove the information prescribed in Clauses 1, 2, 3, 4, and 5, Article 16 of this Law on the service platforms or information systems under their direct management within 24 hours after receiving a request from the Ministry of Public Security's professional cyber security protection force or a competent agency of the Ministry of Information and Communications and keep a system log for a period prescribed by the Government to serve the investigation and handling of violations of the law on cyber security;

c/ Refrain from providing or stop providing services on telecommunications networks or the Internet or value-added services to organizations and individuals that publish in cyberspace the information prescribed in Clauses 1, 2, 3, 4, and 5, Article 16 of this Law when so requested by the Ministry of Public Security's professional cyber security protection force or a competent agency of the Ministry of Information and Communications.

3. Domestic and foreign enterprises providing services on telecommunications networks or the Internet or providing value-added services in cyberspace in Vietnam that collect, exploit, analyze and process personal information or data on relationships of service users and data created by service users in Vietnam shall store these data in Vietnam for a period prescribed by the Government.

Foreign enterprises referred to in this Clause shall establish branches or representative offices in Vietnam.

4. The Government shall detail Clause 3 of this Article.

Article 27. Cyber security research and development

1. Cyber security research and development cover:

a/ Developing cyber security protection software and equipment;

b/ Developing methods for appraising cyber security protection software and equipment in order to ensure that they are up to standards and restrict security weaknesses or vulnerabilities or malware;

c/ Developing methods for testing supplied hardware and software in order to ensure their proper operation;

d/ Developing methods for protecting state secrets, work secrets, business secrets, personal and family secrets and privacy; and for ensuring confidentiality upon transmission of information in cyberspace;

dd/ Identifying the origin of information transmitted in cyberspace;

e/ Handling cyber security threats;

g/ Building cyber ranges and environments for cyber security testing;

i/ Developing technical initiatives to improve cyber security awareness and skills;

i/ Forecasting cyber security developments;

k/ Conducting practical research and developing theories on cyber security.

2. Related agencies, organizations and individuals have the right to conduct cyber security research and development.

Article 28. Improvement of cyber security self-reliance

1. The State shall encourage and create conditions for agencies, organizations and individuals to improve their self-reliance in cyber security and build their capacity of production, testing, evaluation and appraisal of digital equipment, network services and network applications.

2. The Government shall apply the following measures to help agencies, organizations and individuals improve their self-reliance in cyber security:

a/ Promoting the transfer, research, command and development of cyber security protection technologies, products, services and applications;

b/ Promoting the application of new and advanced technologies related to cyber security;

c/ Organizing training, development and use of cyber security human resources;

d/ Improving the business environment and competition conditions to support enterprises to research and produce cyber security protection products, services and applications.

Article 29. Protection of children in cyberspace

1. Children have the right to be protected, access information, participate in social, recreational and entertainment activities, confidentiality of their personal secrets and privacy and other rights when participating in cyberspace.

2. Information system managers, enterprises providing services in telecommunications networks or the Internet and enterprises providing value-added services in cyberspace shall control the contents of information in the information systems or services they manage or provide so as to avoid causing harms to children, infringing upon children or children's rights; restrict the sharing of or remove information causing harms to children or infringing upon children or children's rights; promptly notify and cooperate with the Ministry of Public Security's professional cyber security protection force in handling such harmful information.

3. Agencies, organizations and individuals operating in cyberspace shall cooperate with competent agencies in guaranteeing children's rights in cyberspace and block information causing harms to children in accordance with this Law and the law on children.

4. Agencies, organizations, parents, teachers, child carers and other related individuals shall guarantee children's rights and protect children participating in cyberspace in accordance with the law on children.

5. Professional cyber security protection forces and competent agencies shall apply measures to prevent, detect, stop and strictly handle acts of using cyberspace to cause harms to children or infringe upon children or children's rights.

Chapter V

ASSURANCE OF CYBER SECURITY PROTECTION ACTIVITIES

Article 30. Cyber security protection forces

1. Professional cyber security protection forces shall be arranged at the Ministry of Public Security and the Ministry of National Defense.

2. Cyber security protection forces shall be arranged at ministries, sectors, provincial-level People's Committees, and agencies and organizations directly managing information systems of national security importance.

3. Organizations and individuals may be mobilized to participate in cyber security protection.

Article 31. Assurance of human resources for cyber security protection

1. Vietnamese citizens having knowledge about cyber security, cyberinformation security and information technology are the basic and major resource for cyber security protection.

2. The State shall adopt programs and plans on building and development of human resources for cyber security protection.

3. Upon occurrence of dangerous cyber security circumstances, cyber-attacks, cyber security incidents or cyber security threats, competent state agencies shall decide to mobilize human resources for cyber security protection.

The competence, responsibilities, order and procedures for mobilization of human resources for cyber security protection must comply with the Law on National Security, the Law on National Defense, the Law on the People's Public Security Force and other relevant laws.

Article 32. Recruitment, training and development of cyber security protection forces

1. Vietnamese citizens who satisfy all standards on ethics, health, and qualifications and knowledge about cyber security, cyberinformation security and information technology may be recruited into cyber security protection forces if they so wish.

2. To prioritize the training and development of high-quality cyber security protection forces.

3. To prioritize the development of cyber security training institutions up to international standards; encourage partnership and create opportunities for cooperation in cyber security between the state and private sectors and between domestic and foreign partners.

Article 33. Education and training in cyber security knowledge and operations

1. Cyber security knowledge education and training shall be included in the national defense and security education subject at schools and national defense and security knowledge training programs in accordance with the Law on National Defense and Security Education.

2. The Ministry of Public Security shall assume the prime responsibility for, and coordinate with related ministries and sectors in, organizing training in cyber security operations for cyber security protection forces and civil servants, public employees and workers engaged in cyber security protection.

The Ministry of National Defense and the Government Cipher Committee shall organize cyber security operations training for related people under their management.

Article 34. Dissemination of cyber security knowledge

1. The State shall adopt policies to disseminate cyber security knowledge nationwide, and encourage state agencies to coordinate with private organizations and individuals in implementing cyber security education and awareness raising programs.

2. Ministries, sectors, agencies and organizations shall plan and implement activities of disseminating cyber security knowledge for their cadres, civil servants, public employees and workers.

3. Provincial-level People's Committees shall plan and implement activities of disseminating knowledge and raising awareness about cyber security for agencies, organizations and individuals in localities.

Article 35. Funds for cyber security protection

1. Funds for cyber security protection activities of state agencies and political organizations shall be allocated from the state budget in annual state budget estimates. The management and use of such funds must comply with the law on the state budget.

2. Agencies and organizations other than those prescribed in Clause 1 of this Article shall allocate their own funds for the cyber security protection of their information systems.

Chapter VI

RESPONSIBILITIES OF AGENCIES, ORGANIZATIONS AND INDIVIDUALS

Article 36. Responsibilities of the Ministry of Public Security

The Ministry of Public Security shall take responsibility before the Government for performing the state management of cyber security and

has the following tasks and powers, except those falling under the responsibilities of the Ministry of National Defense and the Government Cipher Committee:

1. To promulgate or propose competent state agencies to promulgate legal documents on cyber security and guide the implementation thereof.

2. To formulate and propose strategies, policies and plans on cyber security protection.

3. To prevent and combat activities of using cyberspace to infringe upon national sovereignty, interests or security and social order and safety, and cyber-crimes.

4. To ensure information security in cyberspace; to create mechanisms for verifying information declared for registration of digital accounts; to give warnings about and share information on cyber security and cyber security threats.

5. To advise and propose the Government and the Prime Minister to consider and decide on the assignment and coordination of implementation of measures for protecting cyber security, preventing and handling acts of infringing upon cyber security if these measures are related to the state management of many ministries and sectors.

6. To organize cyber-attack prevention and fighting drills and cyber security incident response and remediation drills for information systems of national security importance.

7. To conduct examination and inspection, settle complaints and denunciations and handle violation of the law on cyber security.

Article 37. Responsibilities of the Ministry of National Defense

The Ministry of National Defense shall take responsibility before the Government for performing the state management of cyber security within the scope of its management and has the following tasks and powers:

1. To promulgate or propose competent state agencies to promulgate legal documents on cyber security under its management and guide the implementation thereof;

2. To formulate and propose strategies, policies or plans on protection of cyber security within the scope of its management.

3. To prevent and combat activities of using cyberspace infringing upon national security within the scope of its management.

4. To coordinate with the Ministry of Public Security in organizing cyber-attack prevention and fighting drills, cyber security incident response and remedy drills for information systems of national security importance, and organizing cyber security protection work.

5. To conduct examination and inspection, settle complaints and denunciations and handle violations of the law on cyber security within the scope of its management.

Article 38. Responsibilities of the Ministry of Information and Communications

1. To coordinate with the Ministry of Public Security and the Ministry of National Defense in cyber security protection work.

2. To coordinate with related agencies in refuting information opposing the State of the Socialist Republic of Vietnam prescribed in Clause 1, Clause 16 of this Law.

3. To request enterprises providing services in telecommunications networks or the Internet and value-added services in cyberspace and information system managers in removing information violating the law on cyber security on their services and information systems under their management.

Article 39. Responsibilities of the Government Cipher Committee

1. To advise and propose the Minister of National Defense to promulgate or propose competent agencies to promulgate legal documents, programs and plans on cryptography and organize the implementation thereof to protect cyber security under its management.

2. To protect cyber security for cryptographic information systems under the Committee and cryptographic products provided by the Committee in accordance with this Law.

3. To perform the unified management of scientific and technological research in cryptography; use and provision of cryptographic products to protect information classified as state secrets stored and exchanged in cyberspace.

Article 40. Responsibilities of ministries, sectors and provincial-level People's Committees

Within the ambit of their tasks and powers, ministries, sectors and provincial-level People's Committees shall conduct cyber security inspection of information and information systems under their management; and coordinate with the Ministry of Public Security in performing the state management of cyber security in their ministries, sectors and localities.

Article 41. Responsibilities of enterprises providing services in cyberspace

1. Enterprises providing services in cyberspace in Vietnam have the following responsibilities:

a/ To give warnings about cyber security risks in the use of the services they provide in cyberspace and guide preventive measures;

b/ To devise plans and solutions for quick reaction to cyber security incidents, immediately handle security weaknesses and vulnerabilities, malware, cyber-attacks, network intrusion and other security risks; upon occurrence of cyber security incidents, to immediately implement emergency plans and apply appropriate response measures and, at the same time, report such incidents to professional cyber security protection forces in accordance with this Law;

c/ To apply technical solutions and other necessary measures to ensure security throughout the process of information collection, prevent risks of data disclosure, leakage, damage or loss; upon occurrence of an incident or a risk involving disclosure, leakage, damage or loss of user information data, to immediately put forward response solutions, notify users and report such incident or risk to professional cyber security protection forces in accordance with this Law;

d/ To cooperate with and create conditions for professional cyber security protection forces in cyber security protection.

2. Enterprises providing services on telecommunications networks or the Internet and enterprises providing value-added services in cyberspace in Vietnam shall comply with the provisions in Clause 1, this Article, and Clauses 2 and 3, Article 26, of this Law.

Article 42. Responsibilities of agencies, organizations and individuals using cyberspace

1. To comply with the law on cyber security.

2. To promptly provide information relating to cyber security protection, cyber security threats, and acts of infringing upon cyber security to competent agencies and cyber security protection forces.

3. To comply with requirements and instructions of competent agencies in cyber security protection; to help and create conditions for responsible agencies, organizations and individuals to implement cyber security protection measures.

Chapter VII
IMPLEMENTATION PROVISIONS

Article 43. Effect

1. This Law takes effect on January 1, 2019.

2. Managers of operating information systems which are included in the list of information systems of national security importance shall, within 12 months from the effective date of this Law, fully meet the cyber security conditions; professional cyber security protection forces shall assess the cyber security conditions under Article 12 of this Law; the extension of such time limit, when necessary, shall be decided by the Prime Minister but must not exceed 12 months.

3. Managers of operating information systems which are added to the list of information systems of national security importance shall, within 12 months from the date of addition, fully meet the cyber security conditions; professional cyber security protection forces shall assess the cyber security conditions under Article 12 of this Law; the extension of such time limit, when necessary, shall be decided by the Prime Minister but must not exceed 12 months.

This Law was passed on June 12, 2018, by the XIVth National Assembly of the Socialist Republic of Vietnam at its 5th session.-

Chairwoman of the National Assembly
NGUYEN THI KIM NGAN